

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
CLAUDE ALEGRAND,

Plaintiff,

**SUMMONS TO THE
COMPLAINT**

-against-

Index:

THE CITY OF NEW YORK; SGT. WARD; DET. ADE
AJAS, Shield # 686, Tax ID # 941326; and P.O. JOHN DOES
1-10, the individual defendant(s) sued individually and in
their official capacities,

Basis of Venue: occurrence of
incident – 167 Lenox Road,
Brooklyn, New York

Defendants.

----- X
To the above named defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within twenty days after service of this summons exclusive of the day of service where service is made by delivery upon you personally within the state, or within thirty days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
September 30, 2016

MICHAEL O. HUESTON, ESQ.
Attorney for Plaintiff
16 Court Street, Suite 3301
Brooklyn, New York 11241
(718) 246-2900

By: 

MICHAEL O. HUESTON, ESQ.

Defendants' addresses: THE CITY OF NEW YORK, 100 Church Street, New York, New York 10007; SGT. WARD; DET. ADE AJAS, Shield # 686, Tax ID # 941326; and P.O. JOHN DOES # 1-10, One Police Plaza, New York, New York 10007, 67th Precinct, 2820 Snyder Ave, Brooklyn, NY 11226 and/or 71st Precinct, 421 Empire Blvd, Brooklyn, NY 11225

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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Plaintiff, **COMPLAINT**

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Jury Trial Demanded

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Plaintiff Claude Alegrand, by and through his counsel, Michael Hueston, Esq.,
upon information and belief, alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights, common law, and tort action in which plaintiff seeks relief for the violation of plaintiff's rights secured by 42 U.S.C. § 1983; and the Fourth, and Fourteenth Amendments to the United States Constitution; and the laws of the State of New York. Plaintiff's claims arise from an incident that arose on or about July 3, 2015. During the incident, the City of New York, and members of the New York City Police Department ("NYPD") subjected plaintiff to, among other things: assault; battery; unreasonable force; failure to intervene; conspiracy; implementation and continuation of an unlawful municipal policy, practice, and custom; and respondeat superior liability. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees, pursuant 42 U.S.C. § 1988, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. Within 90 days of the incident alleged in this complaint, plaintiff served upon defendant City of New York a Notice of Claim setting forth the name and post office address of plaintiff, the nature of the claims, the time when, the place where and the manner in which the claims arose, and the items of damages or injuries claimed.

3. More than 30 days have elapsed since plaintiff's demands and/or claims were presented to defendant City of New York for adjustment and/or payment thereof, and the defendant has neglected and/or refused to make any adjustment and/or payment.

4. Plaintiff has satisfied all conditions precedent for the filing of this action, including appearing at a 50-hearing. This action is being commenced within one year and ninety days of the date of the occurrence herein.

5. Venue is proper in the Supreme Court of the State New York, Kings County, because the acts in question occurred in the State of New York, Kings County, and the City of New York is subject to personal jurisdiction in Supreme Court of the State New York, Kings County; and jurisdiction is proper because the Supreme Court of the State New York, Kings County has jurisdiction over plaintiff's state law causes of actions, and plaintiff's federal causes of action pursuant to 42 U.S.C. § 1983.

PARTIES

6. Plaintiff Claude Alegrand is a resident of the State of New York, living at 49 Clarkson Avenue, Apt. # 1A, Brooklyn, New York 11226.

7. At all times herein, defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

8. At all times relevant, defendant City of New York maintained a police department known as the NYPD, which employed the individual defendants.

9. At all times alleged herein, defendants Sergeant Ward; Detective Ade Ajas, Shield # 686, Tax ID # 941326; and P.O. John Does # 1-10 were employed as police officers with Narcotics Borough Brooklyn South, and/or the 67th and 71st Precincts, located in Kings County, New York, or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

10. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

The Incident

11. On July 3, 2015, several police officers operating from the Narcotics Borough Brooklyn South, and/or the 67th and 71st Precincts, located in Kings County, New York, including upon information and belief, the individual defendants Sgt. Ward, Det. Ajas, and P.O. John Does # 1-10 ("the police"), at times acting in concert and at times acting independently, committed the following illegal acts against plaintiff.

12. On July 3, 2015 at approximately 5:00 p.m. to 6:00 p.m., at and in the vicinity of 167 Lenox Road, Apt. B16 Brooklyn, New York, the police without cause or justification committed excessive force and beat plaintiff.

13. The police acted in concert in committing the above-described illegal acts against plaintiff.

14. Plaintiff was visiting 167 Lenox Road, Apt. B16 Brooklyn, New York ("the apartment").

15. The police broke into the apartment.
16. Upon information and belief, the police were looking for an individual, other than plaintiff, who lives in the apartment.
17. Once the police entered the apartment, plaintiff was not free to disregard the defendants' questions, walk away or leave the scene.
18. The police told plaintiff to put his hands on the wall.
19. Plaintiff complied and offered no resistance, putting his hands against the wall.
20. The police struck plaintiff's head against the wall.
21. The police then struck plaintiff repeatedly.
22. The police took plaintiff to the floor.
23. The police placed excessively tight handcuffs on plaintiff's wrists.
24. The police were abusive and rude.
25. Plaintiff was bruised.
26. Plaintiff was bleeding.
27. The police transported plaintiff to the 71st Precinct where emergency medical technicians provided some treatment for his injuries.
28. The police held plaintiff at the 67th Precinct for arrest processing.
29. The police transported plaintiff to Brooklyn Central Booking for arraignment.
30. Plaintiff was transported from Central Booking to New York Methodist Hospital, Brooklyn, New York.

31. At New York Methodist Hospital, medical personal treated plaintiff for his injuries.

32. Plaintiff was diagnosed with having a head laceration.

33. Medical personal sutured and bandaged plaintiff's laceration.

34. Plaintiff was transported back to Central Booking where he was charged with among other things criminal possession of a controlled substance, arraigned, and released on his own recognizance.

35. After having to appear in criminal court the case was disposed of by a plea to a non-criminal violation.

36. Plaintiff was humiliated and embarrassed by the experience.

37. Plaintiff suffered physical injuries.

General Allegations

38. Plaintiff did not resist arrest at any time during the above-described incidents.

39. Plaintiff did not commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incident.

40. The individual defendants did not observe plaintiff commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above-described incident.

41. The individual defendants acted under pretense and color of state law and their individual and official capacities and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his rights.

42. As a direct and proximate result of defendants' actions, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

43. Plaintiff is entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiff's rights.

FIRST CLAIM
(UNREASONABLE FORCE)

44. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

45. The individual defendants' use of force upon plaintiff was objectively unreasonable.

46. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiff.

47. Those defendants who did not touch plaintiff, witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

48. Accordingly, the defendants are liable to plaintiff for using unreasonable force, pursuant to 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

SECOND CLAIM

(ASSAULT)

49. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

50. Among other things as described above, individual defendants' battery, false arrest, and unreasonable use of force against plaintiff placed him in fear of imminent harmful and offensive physical contacts.

51. Accordingly, defendants are liable to plaintiff under New York State law for assault.

THIRD CLAIM

(BATTERY)

52. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

53. Among other things as described above, the individual defendants' false arrest, and use of force against plaintiff were illegal physical contacts.

54. Accordingly, defendants are liable to plaintiff under New York State law for battery.

FOURTH CLAIM

(FAILURE TO INTERVENE)

55. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

56. Defendants had a reasonable opportunity to prevent the violations of plaintiff's constitutional rights, but they failed to intervene.

57. Accordingly, the defendants are liable to plaintiff for failing to intervene to prevent the violation of plaintiff's constitutional rights under 42 U.S.C. § 1983; and the Fourth Amendment to the United States Constitution.

FIFTH CLAIM

(CONSPIRACY)

58. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

59. Defendants are liable to plaintiff because they agreed to act in concert to inflict an unconstitutional injury; and committed an overt act done in furtherance of that goal causing damage to plaintiff under 42 U.S.C. § 1983.

SIXTH CLAIM

(MONELL CLAIM)

60. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

61. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiff.

62. Defendant City of New York through the NYPD and its officers, committed the following unconstitutional practices, customs and policies against plaintiff: (1) using unreasonable force on individuals.

63. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants were unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

64. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately investigate prior complaints filed against the individual defendants.

65. Further, defendant City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy) would stop, arrest and prosecute innocent individuals, based on pretexts and false evidence.

66. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct involving the individual defendants, placing the defendant City of New York on notice of the individual defendants' propensity to violate the rights of individuals.

SEVENTH CLAIM

(RESPONDEAT SUPERIOR)

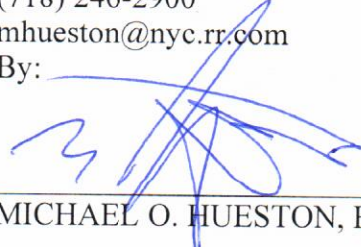
67. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

68. The individual defendants were acting within the scope of their employment when they committed the above described acts against plaintiff, including assaulting, and battering plaintiff.

69. The City of New York is therefore vicariously liable under New York State law for the aforesaid torts.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants; and demands judgment and compensatory damages, individually and/or collectively in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction as to the above-stated cause of action against all defendants; punitive damages in an amount to be determined at trial as and for the above-stated causes of action against the individual defendants; together with costs and disbursements of this action and legal fees pursuant to 42 U.S.C. § 1988.

DATED: Brooklyn, New York
September 30, 2016

MICHAEL O. HUESTON, ESQ.
Attorney for Plaintiff
16 Court Street, Suite 3301
Brooklyn, New York 11241
(718) 246-2900
mhueston@nyc.rr.com
By: 

MICHAEL O. HUESTON, ESQ.

VERIFICATION

I, Claude Alegrand, state under the oath, that I am the deponent in this action, and that I have read the Verified Complaint and that it is true to the knowledge of the deponent, except as to matters, alleged on information and belief, and that as to those matters I believe it to be true.

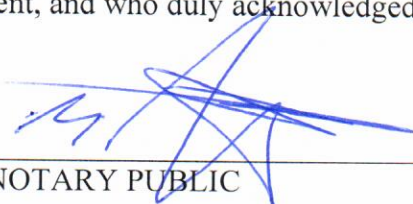
Claude Alegrand
Claude Alegrand

STATE OF NEW YORK)

: ss:

COUNTY OF KINGS)

On the 30th day of September, 2016, before me personally came and appeared CLAUDE ALEGRAND to me known and known to me to be the individual described in and who executed the foregoing instrument, and who duly acknowledged to me that he executed the same.



NOTARY PUBLIC

MICHAEL HUESTON
NOTARY PUBLIC, State of New York
No. 02HU5073603
Qualified in Kings County
Commission Expires April 22, 2018

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

CLAUDE ALEGRAND,

Plaintiff,

-against-

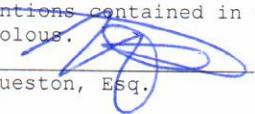
CITY OF NEW YORK, et al.,

Defendants.

SUMMONS AND COMPLAINT

MICHAEL HUESTON, ESQ.
Attorney for Plaintiff
16 Court St., Suite 3301
Brooklyn, New York 11241
(718) 246-2900

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney duly admitted to practice law in the State of New York, certifies that, upon information and belief based upon reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: 9/30/2016 Signature: 

Michael O. Hueston, Esq.

Due and timely, service is hereby
admitted.

Brooklyn, New York....., 2016

....., Esq.

Attorney for.....